

filed April 10, 1987. Motions to dismiss and for summary judgment were filed by the various Defendants. Cross motion for summary judgment was filed by Plaintiffs. Plaintiffs filed motion to strike extraneous material, for expedited discovery, and to reconsider denial of discovery. Both sides filed motions to supplement the record. District Court dismissed complaint as to state judge on the merits and granted summary judgment to other Defendants.

Action in federal court was commenced for violation of rights arising from state court proceeding. That action was one in replevin without notice. No hearing on merits was ever held. Matter was appealed to Illinois Appellate Court, and then to Illinois Supreme Court. Writ of certiorari to United States Supreme Court was denied.

C. STATEMENT OF THE FACTS: On April 11, 1985, the sheriff of Stephenson County, Illinois, acting through several deputies and in the company of various bank officers and others arrived unannounced at the farmstead of the Hunzikers, and without any prior notice to them seized their farm property. (Doc.1, P. 6-8; Doc. 71, P. 27-33). Hunzikers filed removal petition of that matter to federal court prior to any hearing being held in the state court. The federal court entered order of "denied", but has never ordered remand. (Doc. 85; Doc. 91; Doc. 74, P. 6; Doc. 73, P.5-8) The property was disposed of by the state court without any hearing ever being held on the taking or the merits. (Doc. 1, Para. 72, 73, 61, 94-102; Doc. 71, p. 23, 32) Purported consent decree was entered in the state proceeding, which the